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RE: Assignment three

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1. Old Republic International (ORI) (<https://www.oldrepublic.com/>) Chicago. Our company does business in the jurisdictions United States, Canada, Puerto Rico, Guam, U.S. Virgin Islands and U.S. territories, and we are subject to the following data protection laws:

A. Insurance Regulatory Laws: (State-Level Core)

1. State insurance licensing laws.
2. State insurance solvency requirements.
3. Minimum capital and surplus laws.
4. Reserve requirement regulations.
5. Policy form approval laws.
6. Insurance rate regulation laws. (rates must be adequate & not discriminatory)
7. Trade practice regulations.
8. Insurance holding company laws.
9. Dividend restriction laws. (limits on subsidiary payouts)
10. Regulatory reporting & disclosure requirements.

B. Federal Privacy & Data Protection Laws:

11. Gramm-Leach-Bliley Act (GLBA)—governs financial data privacy.
12. Federal consumer data protection requirements.
13. Federal breach notification obligations.
14. SEC cybersecurity disclosure rules (Form 8-K reporting within 4 days of material events).

C. State Privacy & Consumer Protection Laws:

15. California Consumer Privacy Act (CCPA).
16. California Privacy Rights Act (CPRA).
17. Other emerging state-level comprehensive privacy laws.

- 18. State data breach notification laws.
- 19. State consumer protection statutes (general unfair/deceptive practices).

D. Cybersecurity-Specific Regulations:

- 20. New York Department of Financial Services (NYDFS) Cybersecurity Regulation.
- 21. NAIC Insurance Data Security Model Law (adopted by ~26 states).
- 22. State cybersecurity compliance mandates.
- 23. Ransomware reporting requirements.
- 24. Mandatory incident notification rules.

E. Securities & Public Company Regulations:

- 25. **Securities Exchange Act of 1934** (reporting obligations)
- 26. SEC periodic reporting (10-K, 10-Q, 8-K).
- 27. Internal control requirements (Sarbanes-Oxley Section 404).
- 28. Public company disclosure and governance rules.

F. Investment & Financial Risk Regulations:

- 29. Insurance investment restrictions (limits on asset classes, quality, diversification).
- 30. Enterprise risk management and stress-testing expectations (regulatory oversight driven).

Old Republic International collects data from a wide range of sources as part of its insurance underwriting, title services, and financial operations. The most direct source of data is its policyholders, both individuals and businesses, who provide personal, financial, and risk-related information when applying for coverage or submitting claims. This data forms the foundation of the company's underwriting and risk assessment processes. However, a sizable portion of this information is not collected directly, but through intermediaries. Independent insurance agents and brokers, who generate most of the company's specialty insurance business, gather customer applications, supporting documentation, and risk profiles and transmit that information to the company.

Besides insurance-related data, Old Republic collects substantial information through its title insurance operations. Independent title agents, lenders, real estate developers, attorneys, and realtors all contribute data related to property transactions. This includes ownership records, loan details, escrow information, and transaction histories. A critical component of this process is the use of public records, such as government land registries, court filings, and lien databases, which are searched to verify property ownership and identify potential risks before issuing title insurance policies.

The company also gets data through its relationships with financial institutions and reinsurers. Banks provide information tied to escrowing accounts, trust funds, and letters of credit, while reinsurers exchange data related to claims, loss experience, and risk exposure to support risk-sharing arrangements. Internally, the Old Republic generates and stores large volumes of operational data through its underwriting systems, claims processing platforms, and administrative functions, including employee and financial data. Third-party service providers and technology vendors may supply, or process data used for analytics, marketing, and operational support.

Overall, the company's data collection ecosystem is highly distributed, relying on direct customer input, intermediary channels, public records, financial institutions, and internal systems. This multi-source environment increases operational complexity and underscores the importance of strong data governance, privacy compliance, and cybersecurity controls.

2. Please answer:

1. Does the bank collect PHI? Why or why not? (Please note that this answer may change during a pandemic)
2. Does the risk management strategy for data protection depend on which jurisdiction in which the bank is operating?

Old Republic International collects Protected Health Information (PHI), but only in a limited and contextual way rather than as a core function of its business. As an insurance company, its primary role is underwriting risk and processing claims, not delivering healthcare services. However, certain lines of business—particularly workers' compensation, accident and health insurance, and liability claims involving bodily injury—require access to medical information. For example, when an employee is injured on the job or a policyholder files a claim involving physical harm, the company must review medical records, treatment history, and related health data to evaluate the claim and determine payouts. In these scenarios, PHI becomes necessary for legitimate business and legal purposes.

That said, PHI is not universally collected across all operations. Much of the company's business, such as title insurance, property coverage, or financial indemnity products, does not involve health-related data at all. Therefore, PHI exposure is situational and tied to specific insurance products and claims processes rather than enterprise-wide. During a pandemic, however, this dynamic can shift significantly. A widespread health crisis increases the volume of health-related claims, introduces new reporting requirements, and may require additional monitoring of employee or customer health conditions. As a result, the organization may temporarily manage a much larger volume of PHI, increasing both regulatory obligations and cybersecurity risks.

The company's risk management strategy for data protection is strongly influenced by the jurisdictions in which it operates. Because insurance regulation in the United States is primarily state-based, Old Republic must comply with a complex patchwork of state and federal laws governing privacy, cybersecurity, and consumer protection. Federal laws such as the Gramm-Leach-Bliley Act establish baseline requirements for safeguarding financial information, but

individual states impose additional and sometimes more stringent rules. For instance, states like California provide enhanced consumer privacy rights, while New York enforces detailed cybersecurity requirements for financial institutions. Breach notification laws, data handling standards, and regulatory oversight can differ from one jurisdiction to another.

As a result, the company cannot rely on a single, uniform approach to data protection. Instead, it must adopt a layered risk management strategy that combines enterprise-wide controls with jurisdiction-specific adaptations. This includes aligning policies and technical safeguards with the strictest applicable regulations, implementing flexible compliance processes, and continuously monitoring legal developments across all operating regions. The 10-K emphasizes that privacy and cybersecurity laws are developing and vary across jurisdictions, reinforcing the need for an adaptive and comprehensive approach to data governance.